

Awadhesh Kumar Yadav v. State of U.P. & Others

Allahabad High Court · Division Bench · 15 April 2008 · 2008 SCC OnLine All 2573 · Writ - C No. 16947 of 2008 · **Writ petition disposed of; consumer relegated to the Clause 6.5 / Consumer Forum remedy**

HEADNOTE

A disputed factual controversy about a bill — here whether the consumer continued to receive supply after the transformer through which his tubewell was connected was removed/shifted, or whether supply ran until disconnection for non-payment — is not fit for interference under Article 226. The consumer has an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 (a representation to the Executive Engineer) and was, in any event, already pursuing the District Consumer Forum. He was left to avail either remedy, the Executive Engineer to dispose of any objection expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed factual billing dispute belongs to the Clause 6.5 / Consumer Forum remedy

QUESTION

Should the writ court decide a disputed fact about whether supply continued after the transformer was shifted?

HOLDING

No. Whether the consumer continued to receive supply after the transformer was shifted (department's case) or ceased to (consumer's case) is a disputed question of fact unfit for Article 226. The consumer has an alternative remedy under Clause 6.5 before the Executive Engineer, and was already before the District Consumer Forum; he was relegated to those remedies. ¶ (judgment)

LIMITING FACTS

Tubewell connection; transformer removed/shifted around 2000; disputed bill of Rs. 1,11,966; supply disconnected 7.2.2008 for non-payment.

PRINCIPLE TAGS

relegate-to-statutory-remedy A disputed factual billing dispute is for the Clause 6.5 Executive Engineer or the Consumer Forum, not the writ court. ¶ (judgment)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY IN FACT CONTINUED AFTER THE TRANSFORMER WAS SHIFTED

Disputed fact left to the Clause 6.5 authority / Consumer Forum. ¶ (judgment)